



The ABBA Initiative, OPC

Unit #12 2F E-Max Building
Block 71 Lot 5 Phase 4 Xavier Estates
Masterson Avenue, Upper Balulang
Cagayan de Oro City, Philippines 9000

INTELLECTUAL PROPERTY ASSIGNMENT TO CORPORATION BY EMPLOYEE/INTERN

THIS AGREEMENT is made as of the _____ of _____, 20____.

BETWEEN:

**The ABBA Initiative, OPC with its services arm, YAHSHUA Outsourcing
Worldwide, Inc,** corporations governed by the laws of the Republic of the Philippines
(the "Corporation")

- and

_____(the "Assignor")

RECITALS

- A. At the time of employment with the Corporation, the Assignor was the owner of or held proprietary rights in relation to intellectual property identified herein and related to the Corporation's business of developing various software programs for various clients and users (the "Intellectual Property"), which Intellectual Property was developed in contemplation of being used, either directly or indirectly, by the Corporation in connection with carrying on the business of the Corporation.
- B. Assignor understands that the Corporation respects third party proprietary rights and does not desire to acquire any trade secrets or confidential information of third parties for which disclosure has not been requested by Corporation and authorized by such third party. Assignor represents and warrants to the Corporation that (a) he/she is not under any pre-existing obligation inconsistent with the terms of this instrument; (b) to the best of his/her knowledge, the Intellectual Property is his/her original work, free and clear of any claims or encumbrances of any kind, and, to the best of his/her knowledge, will not infringe any patent, copyright or other proprietary right or violate a trade secret of any person or entity; (c) his/her delivery of this instrument has not and will not violate or conflict with or result in a breach of any terms, conditions, duties or obligations his/her has to any third party; and (d) he/she has not authorized any third party to use, or granted any option to acquire any rights to or licenses to use any of the Intellectual Property, nor has he/she covenanted or agreed with any third party not to sue or otherwise enforce any legal rights with respect to any of the Intellectual Property. The representations and warranties of this paragraph B shall survive the date of this instrument.
- C. The Assignor is currently executing an Employment agreement including proprietary information and confidentiality clauses, dated _____ of _____, 20____ relating to his/her ongoing employment by the Corporation and the assignment to the Corporation of his/her rights in respect of an intellectual property created by him/her during his/her term of employment with the Corporation.



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D. The Assignor and the Corporation have agreed that the assignment of all Intellectual Property referred to in Recital A above (the 'Assigned Intellectual Property') which was held or owned, in any form or manner whatsoever, by the Assignor prior to the incorporation of the Corporation is material to the business of the Corporation and was intended at all material times by the parties to be assigned by the Assignor to the Corporation as a condition precedent to the employment of the Assignor by the Corporation.

NOW THEREFORE, in consideration of the sum of ONE PESO (PhP1.00) and other good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the Corporation and the Assignor hereby agree that:

1. The Assignor acknowledges that in the Assignor's capacity as an employee of the Corporation, he/she will benefit from this assignment of the Assigned Intellectual Property.
2. The Assignor hereby sells, assigns and transfers unto the Corporation, all his/her right, title and interest, in and to the Assigned. Intellectual Property created or owned in any form or manner whatsoever by him/her prior to the date of the incorporation of the Corporation. To the extent that any such Assigned Intellectual Property is not assignable or transferable to the Corporation ("Non-assignable IP"), the Assignor hereby grants to the Corporation a non-exclusive, royalty-free, irrevocable, perpetual,, world-wide license to make, have made, modify, manufacture, reproduce, sub-license, use and sell such Non-assignable IP, and any residual rights the Assignor holds in the Non-assignable IP will be held by him/her in trust for the sole benefit of the Corporation. The Assignor will convey, transfer, dispose of and otherwise deal with the Non-assignable IP (including the execution and delivery of all documents and other instruments relating to the Non-assignable IP) in such a manner as the Corporation shall from time to time direct.

IN WITNESS WHEREOF the parties have executed this Agreement as of the date first mentioned above.

EMPLOYEE/INTERN

Name & Signature: _____

Date: _____

CORPORATION

Company Name: _____

Representative Name & Signature: _____

Date: _____

WITNESS

Name & Signature: _____

Date: _____